VENDOR SERVICE CONTRACT

Elmhurst Senior Living | Naperville, IL

Owner	Elmhurst Senior Living Owner LLC
Contractor	PaveRight Sealcoating
Services	parking lot maintenance
Property	Elmhurst Senior Living
Effective Date	December 16, 2022

1. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform parking lot maintenance at Elmhurst Senior Living in accordance with the specifications attached hereto. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

2. Term and Termination. This Contract commences on the Effective Date for a term of 36 months and may be terminated by either party on thirty days' written notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

3. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IL. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

4. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

5. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IL.

6. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

7. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

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8. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

9. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform parking lot maintenance at Elmhurst Senior Living in accordance with the specifications attached hereto. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

10. Term and Termination. This Contract commences on the Effective Date for a term of 44 months and may be terminated by either party on thirty days' written notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

11. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

12. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IL. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

13. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IL.

14. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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15. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IL.

16. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

17. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform parking lot maintenance at Elmhurst Senior Living in accordance with the specifications attached hereto. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

18. Term and Termination. This Contract commences on the Effective Date for a term of 13 months and may be terminated by either party on thirty days' written notice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

19. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

20. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IL.

21. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

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22. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IL. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

23. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

24. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IL. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

25. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform parking lot maintenance at Elmhurst Senior Living in accordance with the specifications attached hereto. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

26. Term and Termination. This Contract commences on the Effective Date for a term of 27 months and may be terminated by either party on thirty days' written notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

27. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IL.

28. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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29. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

30. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IL.

31. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

32. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IL.

33. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform parking lot maintenance at Elmhurst Senior Living in accordance with the specifications attached hereto. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IL. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

34. Term and Termination. This Contract commences on the Effective Date for a term of 39 months and may be terminated by either party on thirty days' written notice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

35. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Elmhurst Senior Living Owner LLC

By: Marcus Okafor Title: President Date: 12/16/2022

_____

Hannah Garcia

By: Marcus Schmidt Title: President Date: 12/16/2022

Exhibit A - Property

Elmhurst Senior Living, 6306 Quarry Parkway, Naperville, IL 13180. Parcel containing approximately 16.72 acres, together with all improvements thereon.

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